

HOUSE BILL 911

By Garrett

AN ACT to amend Tennessee Code Annotated, Title 47,
relative to consumer protection.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 47-18-104(b)(27), is amended by deleting "any other act or practice which is deceptive to the consumer" and substituting "any other act or practice which is deceptive or unfair to the consumer".

SECTION 2. Tennessee Code Annotated, Section 47-18-104(b), is amended by deleting subdivision (43) and substituting:

(43) The act or practice of directly or indirectly:

(A) Making representations that a person will pay or reimburse for a motor vehicle traffic citation for any person who purchases a device or mechanism, passive or active, that can detect or interfere with a radar, laser, or other device used to measure the speed of motor vehicles; or

(B) Advertising, promoting, selling, or offering for sale any radar jamming device that includes any active or passive device, instrument, mechanism, or equipment that interferes with, disrupts, or scrambles the radar or laser that is used by law enforcement agencies and officers to measure the speed of motor vehicles;

SECTION 3. Tennessee Code Annotated, Section 47-18-107(a), is amended by deleting "The assurance shall be in writing and shall be filed with and subject to the approval of the circuit or chancery court of Davidson County.".

SECTION 4. Tennessee Code Annotated, Section 47-18-108, is amended by adding the following new subsections:

(d) In any action brought by the attorney general and reporter under subsection (a), the attorney general and reporter is the sole party for discovery purposes and is deemed to lack possession, custody, or control over documents possessed by the general assembly, other state officers, or any state agencies or institutions. If such an action is asserted on behalf of a political subdivision or agency, then the attorney general and reporter may facilitate nonparty discovery from that political subdivision or agency as an instrumentality with an interest in the litigation consistent with § 8-6-109.

(e) In any action brought by the attorney general and reporter under subsection (a), where the attorney general and reporter does not seek to recover for an injury suffered by a state governmental branch or office, official, agency, political subdivision, or other instrumentality, nonparty discovery of that entity is presumptively unreasonable and unduly burdensome.

SECTION 5. Tennessee Code Annotated, Section 47-18-111(a)(2), is amended by deleting the language "on behalf of others without notification" and substituting "on behalf of others and where the claim concerns the underlying published content's violation of this part, without notification".

SECTION 6. Tennessee Code Annotated, Section 47-18-131(c)(4), is amended by deleting subdivision (A) and substituting:

(A) Failing to provide the disclosure described in subdivision (c)(4)(B) in Times New Roman typeface, either in the largest font type on the entire advertisement, but in no event smaller than bold fourteen (14) point black type, when offering documents, information, or services that are available free of charge or at a lesser price from a governmental entity, or when offering to take any action on behalf of another that could

otherwise be taken free of charge or at a lesser price by interacting directly with a governmental entity:

- (i) For mailers: on the front and outside of the mailing envelope and on the top page of any included advertisement;
- (ii) For emails: at the top of the email message;
- (iii) For web pages: on each web page; or
- (iv) For any other format: on the top of each page of any advertisement;

SECTION 7. Tennessee Code Annotated, Section 47-18-131(c)(4)(B), is amended by deleting "documents" and substituting "documents, information, or services".

SECTION 8. Tennessee Code Annotated, Section 47-25-106(a), is amended by deleting the language "may sue for and recover" and substituting "may individually sue for and recover".

SECTION 9. Tennessee Code Annotated, Section 47-50-120, is amended by adding the following subsection:

(e) A violation of this section is a violation of the Tennessee Consumer Protection Act of 1977, compiled in chapter 18, part 1 of this title. A violation of this section constitutes an unfair or deceptive act or practice affecting trade or commerce and is subject to the penalties and remedies as provided in the Tennessee Consumer Protection Act of 1977.

SECTION 10. Tennessee Code Annotated, Section 47-50-121, is amended by adding the following subsection:

(e) A violation of this section is a violation of the Tennessee Consumer Protection Act of 1977, compiled in chapter 18, part 1 of this title. A violation of this section constitutes an unfair or deceptive act or practice affecting trade or commerce

and is subject to the penalties and remedies as provided in the Tennessee Consumer Protection Act of 1977.

SECTION 11. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as new subdivisions:

() Violating § 47-50-120;

() Violating § 47-50-121;

SECTION 12. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

() Advertising, promoting, selling, or offering for sale a good or service that is illegal or unlawful to sell in this state;

SECTION 13. SECTIONS 3, 6, 7, and 9-11 take effect July 1, 2025, the public welfare requiring it. SECTIONS 1, 2, 4, 5, 8, and 12 take effect upon becoming a law, the public welfare requiring it, and apply retroactively to causes of action arising prior to this act's taking effect and to pending litigation.